

CODE

Council procedure

Draft for member review | 29 September 2026

Plain language summary

Monthly meetings, 7 days' notice, minutes in 7 days, and no spending decision by text message. A power of council, under Indian Act subsection 2(3), is exercised at a meeting duly convened.

Working draft. Not adopted law. Not a legal opinion. Laws cited were read on the Justice Canada consolidations current to 21 September 2026, the Charter and Constitution Act, 1982 consolidation, and the Treaty No. 8 text published by Crown-Indigenous Relations and Northern Affairs Canada. This draft is not a legal opinion.

Part 1. Purpose

1.1 This instrument is the council procedure. A decision that spends money, hires, or allocates a benefit exists only if it is a resolution made at a meeting that met these rules.

Part 2. Meetings

2.1 Council must meet at least once in every calendar month. The records officer must post the year's dates by 15 January. If a month has no meeting, the appeal body must post that fact by the 5th day of the next month, and council honoraria stop until the missed meeting is held and the minutes are posted.

2.2 The records officer must give each councillor, and post for members, the agenda and the draft resolutions at least 7 days before a regular meeting.

2.3 An emergency meeting may be called on 24 hours' notice. It may decide only the item written in the notice. The decision dies at the end of the next regular meeting unless that meeting ratifies it. A payment made on a dead decision must be repaid by the person who authorized it, within 30 days.

2.4 Quorum is the quorum in the constitution. If quorum is lost, the meeting stops. A vote taken after that is void.

2.5 The chair may vote once. The chair does not have a second vote. A tie fails.

2.6 A councillor with a conflict under the conduct instrument must leave before the item is called. The minutes must name the person and the item. If the minutes do not, the records officer must correct them within 2 days of being told, or the appeal body must post the omission.

Part 3. The record

3.1 The records officer must post the minutes within 7 days of the meeting and keep them posted for 10 years. Minutes must include the resolution number, the movers, the count, and any recusal.

3.2 A decision made by text, email, or phone is not a resolution. A payment, hiring, or housing allocation made on one is unauthorized. The person who authorized it must repay the sum, or reverse the allocation, within 30 days. The appeal body must post the breach within 7 days of confirming it.

3.3 Members may attend a regular meeting except when the item is solicitor-client advice or a named person's personal information. The closed portion must be listed on the agenda in general words. A decision to spend money must not be made in the closed portion. If it is, it is void.

Part 4. Taking office and leaving it

4.1 Before sitting, the chief and each councillor must read the oath out loud at a meeting and sign it. The records officer must post the signed oath within 2 days. A person who has not signed must not vote. A vote cast before signing is void.

4.2 Within 7 days after a term ends, the outgoing person must deliver records, keys, devices, and passwords to the records officer and sign a list of what was delivered. A person who does not is not eligible for office, a contract, or a program decision until the list is signed. The appeal body must post the omission on day 8.

A court order to get records back is not automatic. Indian Act subsection 81(3) is available if the rule has been made as a by-law and the by-law is contravened. If it is only custom, a lawyer has to frame the claim. Do not assume the police will collect passwords.

Part 5. Amendment

5.1 Council must not amend this council procedure by resolution. A resolution that purports to amend it is void on the day it is signed. The appeal body must post that fact within 14 days.

5.2 An amendment passes only if a majority of the votes cast are yes and at least 25 percent of the electors cast a ballot.

5.3 The electoral officer must post the full proposed text at least 30 days before the vote. A vote held on shorter notice is void.

5.4 An amendment that removes or weakens a spending limit, a signature rule, a ban on voting on one's own pay, honorarium, travel, or contract, publication of financial statements or the remuneration schedule, a term limit, the fixed election date, the conflict register, a recusal rule, a right-to-information deadline, the whistleblower channel to the appeal body, the independence of the appeal body, or the rule that members, not council alone, amend a law does not pass under 5.2. It passes only if a majority of all electors vote yes. If that count is not met, the amendment is void.

5.5 The electoral officer must post the count within 3 days.

Part 6. Review and coming into force

6.1 The appeal body must review this council procedure every 4 years, counted from the day it comes into force, and must post a written report within 60 days after that anniversary. The report does not amend this council procedure.

6.2 Within 90 days of that report, council must either put a recommended amendment to the electors under Part 5, or post written reasons for not doing so. If council does neither, the appeal body must post that omission on day 91, and council honoraria stop on day 91 until one of those two things is done.

6.3 this council procedure comes into force on the day after the electors approve it under Part 5. Until that day it is a draft. It does not repeal an election code, by-law, or policy already in force.

6.4 Where a law already in force sets its own replacement rule, this council procedure replaces that law only if the electors also meet that rule. A lawyer should compare the two texts before the vote.

6.5 The records officer must keep the adopted text posted for at least 10 years. If it is not posted by day 10 after the vote, the records officer must post a written reason that day, and the appeal body must appoint a replacement records officer within a further 10 days.

This is not a legal opinion. A lawyer, or a person whose work is First Nation governance, should review this draft before members vote. A by-law that conflicts with the Indian Act, the Criminal Code, or another federal law is of no effect to the extent of the conflict. Police and Crown prosecution of a band by-law is uneven. The Minister's steps under the First Nations Financial Transparency Act, section 13, are discretionary. The consequences in this instrument are internal for that reason.